



Appeal Decision

Site visit made on 23 June 2026

by **D Ellis MPlan MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 18 September 2026

Appeal Ref: 6007130

Land at south of Old Elstead Road, Milford GU8 5EB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant outline planning permission.
 - The appeal is made by Mr J Moore against the decision of Waverley Borough Council.
 - The application Ref is WA/2025/02158.
 - The development proposed is the erection of a custom self-build dwelling.
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Decision

1. The appeal is dismissed.

Preliminary Matters and Main Issue

2. The application was submitted in outline with all matters reserved for subsequent approval. Consequently, I have assessed the appeal proposal on that basis and have considered the submitted plans as indicative.
3. A new National Planning Policy Framework (the Framework) was issued on 17 August 2026, which replaces the previous Framework published in December 2024. This latest version of the Framework has introduced plan-making and national decision-making policies and is effect from the day of publication. The appellant and the Council have had the opportunity to comment on the new Framework.
4. Following the publication of the new Framework, the Council now considers the site to constitute grey belt land and thus would not be inappropriate development in the Green Belt in accordance with Policy GB7(g) of the Framework. Given that the proposal would not fundamentally undermine the purposes (taken together) of the remaining Green Belt, the Council's very low housing land supply, and as the proposal would be in a sustainable location, I have no reason to conclude that the site would not accord with Policy GB7(g) of the Framework. As such, the first reason for refusal falls away.
5. Therefore, the main issue is the effect of the proposal on the character and appearance of the area, including its effect on the Surrey Hills National Landscape.

Reasons

6. The appeal site is an area of land to the south-west of Old Elstead Road with a small cluster of buildings to the south-west along Amberley Lane. To the north-east of Old Elstead Road is a residential development. The site lies within an Area of Great Landscape Value (AGLV). The site is visible from the adjoining roads and

has boundary trees and vegetation which visually merges with other established vegetation, especially that which continues south-west along the same side of Old Elstead Road.

7. The site also lies within the Surrey Hills National Landscape (NL). The statutory purpose of National Landscapes is to conserve and enhance the natural beauty of the area. Section 85 of the Countryside and Rights of Way Act 2000 (as amended) includes the duty on relevant authorities that they must seek to further this purpose when exercising or performing any functions in relation to, or so as to affect, land in an area of outstanding natural beauty (now National Landscapes).
8. Furthermore, paragraph 1 of Policy N4 of the Framework development proposals within Protected Landscapes, including National Landscapes, should be limited in scale and extent and sensitively located and designed to avoid harm to the statutory purposes and special qualities of the Protected Landscape. Paragraph 1 further states that substantial weight should be placed on the importance of conserving and enhancing the natural beauty of these areas.
9. The Surrey Hills Management Plan 2020-2025 explains that the NL is a diverse landscape characterised by areas of woodland, hills and valleys, traditional mixed farming, a patchwork of chalk grassland and heathland, sunken lanes, picturesque villages, and market towns.
10. The housing on the north-east side of Old Elstead Road is set back behind a wide grass verge and appears as an established part of a residential area. There is a clear difference in character and appearance between this built-up residential development and the sporadic clusters of buildings surrounded by fields and countryside broadly to the west of the appeal site and Old Elstead Road. When viewed on the ground, the appeal site appears much more associated with the wider rural character of the surrounding land. Its undeveloped and open form makes a contribution with the other open land on this side of the road in providing a visual separation between the cluster of buildings to the south-west and the residential development to the north and north-east. As such, the site in this location at the junction of the two roads makes a valuable contribution to the semi-rural character and appearance of the area and thereby to the natural beauty of the NL.
11. Appearance, scale and layout are matters which would be reserved for future approval. Nevertheless, the provision of a dwelling, even if well designed and modest in size, with the associated works and, in due course, likely residential paraphernalia would, where no development currently exists, have a noticeable effect and change in character. It would erode the rural contribution the site makes to the area and would adversely reduce the visual separation from the residential development to the north-east from the cluster of buildings to the south-west. The effect would be to harmfully detract from the character and appearance of the area, within this part of the AGLV. The proposal would also result in a modest yet incongruous domestic encroachment into the NL, detracting from the rural character and natural beauty of the NL.
12. I have carefully considered the appellant's Landscape Statement which describes the existing boundary hedge as a 'dominant and incongruous feature which creates more of a sense of enclosure than openness'. While the tall evergreen screen around parts of the site could be considered somewhat incongruous it

nevertheless does not have a residential character to the site and even with this boundary planting there is a feeling of open undeveloped character to the land. The site merges visually with the land broadly to the south-west and whether or not the hedge is retained or replaced with other planting, the effect of the scheme would be to severely undermine the undeveloped character of the site and its positive contribution to the area.

13. I consider that the Landscape Statement places too much emphasis on the adverse effect of the present boundary planting and underplays the importance that comes from the undeveloped nature of the site in this location. I therefore place greater weight on the conclusions of the Council in this respect.
14. For these reasons, I conclude that the proposal would cause harm to the character and appearance of the area and to the AGLV and would fail to conserve or enhance the natural beauty of the NL. The proposal would therefore conflict with Policies RE3 and TD1 of the Waverley Borough Local Plan Part 1: Strategic Policies and Sites February 2018, insofar as they require development to respond to the distinctive local character, to respect and where possible enhance the distinctive character of the landscape in which it is situated, and to protect and enhance the character and qualities of the NL and AGLV.
15. Paragraph 1 of Policy DP3 of the Framework requires development proposals to respond to their context, including the character and features of their site and its setting, so that they integrate with and enhance their surroundings. The paragraph further states that this should not preclude change where appropriate, especially where an increased density is justified in accordance with Policies L2 (Making effective use of land) and L3 (Achieving appropriate densities).
16. For the reasons given above the proposal would fail to respond to its context, character and features of the site and its setting. As such, the proposal would not integrate with or enhance its surroundings. I am therefore not satisfied that the proposed dwelling would constitute an effective use of land or that the increase in density would be justified. The proposal would therefore fail to comply with paragraph 1 of Policy DP3 of the Framework
17. As the proposal would harm the statutory purposes and special qualities of the NL and would fail to conserve or enhance the natural beauty of the NL, the proposal would also conflict with Policy N4 of the Framework.

Other Matters

18. There are four Grade II listed buildings within the cluster of buildings along Amberley Lane. The historic nature and traditional appearance of these buildings contribute strongly to their significance. However, the distance of the appeal site from these buildings would ensure that the proposal would not harm the setting or significance of the listed buildings.

Other Considerations

19. Policy S3 of the Framework sets out that decisions on development proposals should apply a presumption in favour of sustainable development. Policy S5 of the Framework has regard to development outside settlements. However, paragraph 5 of Policy S5 states that this policy does not apply to development proposals in the Green Belt, which should be determined in accordance with Policies GB6, GB7

and/or GB8 as appropriate. Paragraph 5 further states that where development would not be inappropriate in these locations through the application of Policy GB7, proposals should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework and applying paragraph 2 of Policy S5.

20. Paragraph 2 of Policy S5 of the Framework states that the circumstances in which the benefits of approving development proposals are likely to be substantially outweighed by adverse effects include, but are not limited to, situations where the development proposal would fail to comply with one of the national decision-making policies which state that development proposals should be refused in specific circumstances.
21. The Council states that they can currently only demonstrate a 1.28-year supply of housing sites. There is, therefore, a significant shortfall in housing land. Policy HO7 of the Framework states that substantial weight should be given to the benefits of providing homes which will contribute towards meeting the evidenced accommodation needs of the community.
22. The provision of one additional unit would make a modest but meaningful contribution to the existing supply. Economic and social advantages would also arise from the construction and occupation of a new house, although these would be limited by the scale of the scheme. The proposed dwelling would be located in a fairly sustainable location where future occupants would have access to services and facilities without the need to rely on the private vehicle.
23. The proposal is advanced on the basis of a self-build dwelling. However, notwithstanding the CIL self-build exemption proforma I have no mechanism, such as a planning obligation under Section 106 of the Town and Country Planning Act 1990 (as amended), before me to secure the new dwelling as a self-build property. The Council has suggested a condition to meet this requirement however I am not persuaded that such a condition would meet the test for enforceability.
24. Nevertheless, when taken together and having regard to the lack of a five-year housing land supply, the benefits of the scheme, because an additional self-build dwelling would result, should be attributed substantial weight.
25. However, the proposal would fail to comply with paragraph 1 of Policy DP3 of the Framework. Paragraph 3 of Policy DP3 states that development proposals should be refused if, without clear justification, they conflict with paragraph 1 of Policy DP3. The proposal would also conflict with Policy N4 of the Framework. These adverse effects are matters of considerable importance.
26. In the circumstances of this case, I conclude that the benefits of the scheme would not outweigh the harm that would be caused to the character and appearance of the area, the AGLV and the NL. Consequently, I am satisfied when having regard to paragraph 2 of Policy S5 of the Framework that the benefits of the scheme would be substantially outweighed by the adverse effects.

27. Consequently, I conclude that the proposal conflicts with the development plan and that material considerations do not indicate that the appeal should be decided other than in accordance with it. The appeal should therefore be dismissed.

D Ellis

INSPECTOR